

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: [REDACTED]	Team: Squad #05	CCRB Case #: 202305127	☐ Force ☒ Abuse	☐ Discourt. ☐ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Thursday 03/09/2023 1:09 AM	18 Mo. SOL 09-09-2024	Location of Incident: Audubon Avenue and West 183rd Street		Precinct: 34	
Date/Time CV Reported Wed, 06/07/2023 12:42 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Wed, 06/07/2023 12:42 PM		

Complainant/Victim	Type	Home Address
1. Person 1	Comp/Victim	[REDACTED]
2. Person 2	Reporting Non-Witness	Unknown

Subject Officer(s)	Shield	TaxID	Command
1. PO Paris Giddins	24186	969736	034 PCT
2. SGT Jonathan Carter	01917	950164	034 PCT
3. PO Marvin Jeanbaptiste	11466	970621	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Gregory Donato	02707	946948	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Marvin Jeanbaptiste	Abuse of Authority: Police Officer Marvin Jeanbaptiste questioned Person 1	A . Substantiated
B . SGT Jonathan Carter	Abuse of Authority: Sergeant Jonathan Carter arrested Person 1 unlawfully.	B . Unfounded
C . SGT Jonathan Carter	Abuse of Authority: Sergeant Jonathan Carter seized Person 1 property.	C . Within NYPD Guidelines
D . SGT Jonathan Carter	Abuse of Authority: Sergeant Jonathan Carter detained Person 1	D . Substantiated
E . PO Paris Giddins	Other Possible Misconduct Noted: Police Officer Paris Giddins failed to prepare a memo book entry as required.	E . Other Possible Misconduct
F . SGT Jonathan Carter	Other Possible Misconduct Noted: Sergeant Jonathan Carter failed to produce a vehicle report as required.	F . Other Possible Misconduct

Case Summary

On June 7, 2023, Person 2 of the Justice Committee filed this complaint on behalf of Person 1 by emailing Executive Director Person 2. Person 2 was not present during the incident.

On March 9, 2023, at approximately 1:09 a.m., Sgt. Jonathan Carter, PO Marvin Jeanbaptiste, and PO Paris Giddins of the 34th Precinct stopped Person 1 vehicle at Audubon Avenue and West 183rd Street in Manhattan. PO Jeanbaptiste questioned Person 1 about whether he had any weapons in his vehicle (**Allegation A: Abuse of Authority, substantiated**). Under Sgt. Carter's supervision, PO Jeanbaptiste allegedly unlawfully arrested Person 1 after seeing that Person 1 had an active warrant in the NYPD database (**Allegation B: Abuse of Authority, unfounded**). Sgt. Carter drove Person 1 vehicle to the 34th Precinct stationhouse (**Allegation C: Abuse of Authority, within NYPD guidelines**). Under Sgt. Carter's supervision, officers detained Person 1 at the stationhouse for approximately four and a half hours, until it was determined that the open warrant belonged to Person 1 deceased brother, Person 3 (**Allegation D: Abuse of Authority, substantiated**). PO Giddins failed to prepare a memo book entry (**Allegation E: Other Possible Misconduct Noted**). Sgt. Carter failed to ensure that a vehicle report was prepared (**Allegation F: Other Possible Misconduct Noted**). Person 1 arrest was voided (BR 01), and he was released with summonses for tinted windows and failing to obey a traffic signal (BR 02).

The investigation obtained BWC footage (BR 03-07, summarized in BR 08-09). All references to video evidence below refer to the time stamp in the video player, and not to any on-screen clock embedded in the footage itself.

PO Jeanbaptiste has since been reassigned to Manhattan North Community Response Team (CRT).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Marvin Jeanbaptiste questioned Person 1

Person 1 testified (BR 10) that PO Jeanbaptiste informed him that they were pulling him over because he ran a red light. Person 1 was shocked because he had not committed any traffic infractions. PO Jeanbaptiste asked Person 1 for his license, registration, and insurance, which he provided. Shortly after, PO Jeanbaptiste stated that Person 1 had a warrant and that they had to arrest him. Person 1 did not recount that PO Jeanbaptiste questioned him about anything in his vehicle or asked to search his vehicle.

PO Jeanbaptiste's BWC footage (BR 04) is consistent with Person 1 testimony about the first part of the vehicle stop. At 04:24, PO Jeanbaptiste asks Person 1 if he has any weapons in the vehicle, and he replies that he does not. PO Jeanbaptiste asks, "Mind if we took a look? Would you have a problem if we took a look in your vehicle just to verify you don't have –" and Person 1 says that he does not consent to any illegal searches or seizures. PO Jeanbaptiste says that it is no problem.

PO Jeanbaptiste testified (BR 11) that he asked Person 1 if he had any weapons in the vehicle because it was "conversation." There was no other reason he asked about weapons. PO Jeanbaptiste asked Person 1 if he could search his vehicle because he asked "just to ask." There was nothing specific about this vehicle stop that led PO Jeanbaptiste to ask Person 1 if he could search his vehicle. Person 1 had the right to say no to the search, but if he had consented, PO Jeanbaptiste

would have taken the opportunity to search. PO Jeanbaptiste did not observe any potential weapons inside the vehicle. PO Jeanbaptiste did not have any reason to believe that there may have been a weapon inside the vehicle. Prior to seeing the warrant, he did not suspect Person 1 of committing any other crimes or violations aside from having tinted windows and the initial vehicle infraction.

Under the Level Two common law right of inquiry, an officer who has founded suspicion of criminality may ask a person pointed questions. This type of inquiry includes questions that are accusatory in nature and would lead the person to believe that he or she is suspected of some wrongdoing. *New York v. Hollman*, 79 N.Y.2d 181 (1992) (BR 12), citing *People v. De Bour*, 40 N.Y.2d 210 (1976) (BR 13). Officers may not, without founded suspicion for the inquiry, ask occupants of a lawfully stopped vehicle if they possess any weapons. *People v. Garcia*, 20 N.Y.3d 317 (2012) (BR 14). Officers may not seek consent to search a vehicle unless they possess Level Two founded suspicion of criminality beyond the observed traffic violation. *People v. Turriago*, 219 A.D.2d 383 (1996) (BR 15).

It is clear based upon PO Jeanbaptiste's testimony that he did not have any founded suspicion of criminality beyond Person 1 traffic violations. As such, PO Jeanbaptiste did not have the requisite Level Two founded suspicion to question Person 1 about whether he had any weapons in the vehicle and to request to search his vehicle. It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Abuse of Authority: Sergeant Jonathan Carter arrested Person 1 unlawfully.
Allegation (D) Abuse of Authority: Sergeant Jonathan Carter detained Person 1.

It is undisputed that upon searching for Person 1 records on his department phone during the vehicle stop, PO Jeanbaptiste saw what he believed to be an active warrant for Person 1 which Sgt. Carter confirmed. The officers arrested Person 1 and brought him back to the stationhouse for processing. Person 1 was detained for approximately four and a half hours, until the officers eventually determined that the subject of the warrant was actually Person 1 deceased brother, Person 3.

It is important to note that, in general, a person is assigned an exclusive NYSID (New York State Identification Number) when they are first arrested. This same NYSID should be used in all future records for them. However, there are instances when the same person can be inadvertently assigned multiple NYSIDs, or when the records of different people can be inadvertently joined within a single NYSID.

During an incident on October 17, 2019, officers stopped Person 3 vehicle and he falsely identified himself to them by providing Person 1 ID. An officer shot and killed Person 3 during the incident (see CCRB # 202007674). Person 1 was not aware of any other reason why Person 3 warrant may have listed his name. Person 1 adamantly expressed to the officers during the vehicle stop that he could not have an open warrant. He told them it must have been an error, especially because he frequently engages in protests related to his brother's killing. Person 1 was lodged in a holding cell at the stationhouse for approximately four to five hours, during which time the officers did not provide any additional information about the open warrant or the situation. After those hours passed, Person 1 got the attention of the desk officer, Sgt. Gregory Donato, and explained why he believed that the warrant was a mistake. Sgt. Donato searched Person 1 name in the computer system and asked him, "Who's Person 3 Person 1 explained the situation with his brother, and Sgt. Donato said that he needed to find out more information from the arresting officer. After approximately an hour, Sgt. Carter and another officer approached the holding cell and explained to Person 1 what they had seen in the NYPD database when they

searched his name during the vehicle stop. They told him the search for his name had showed that there was an active warrant active for “unlicensed operator” in Person 3 name from 2012. Sgt. Carter apologized, and the officers said that they would start the process of releasing him.

The BWC footage was generally consistent with Person 1 testimony, with the following additions. After Person 1 provides his ID during the vehicle stop, PO Jeanbaptiste searches on his phone for over three minutes. It is not clearly discernible what he is searching for or what he sees, other than there being text on the screen and a small photograph (BR 04, at 02:00). At 05:27, PO Jeanbaptiste hands his phone to Sgt. Carter and tells him that it shows there is an active warrant. Sgt. Carter tells Person 1 that he has a warrant from a ticket he got in the Bronx when he did not have a driver’s license. Person 1 says that the warrant is fabricated because he did not get any tickets in the Bronx and he makes sure all his things are taken care of because he is an activist. Sgt. Carter’s BWC footage shows that when PO Jeanbaptiste hands him his phone (BR 03, at 06:09), he looks at it and scrolls down, then swipes to the left and then to the right. There is text on the screen as well as part of a photograph. At 06:26, Sgt. Carter confirms to his partners that they will arrest Person 1. The officers’ footage ends at approximately 1:30 a.m., after they have brought Person 1 to the stationhouse and presented him at the main desk (BR 04, at 21:21). The next BWC videos show Sgt. Carter and PO Jeanbaptiste in the process of releasing Person 1 which occurs at approximately 6 a.m. (BR 06, at 00:00).

The Command Log is consistent with the BWC footage. It has an entry at 1:23 a.m. for Person 1 arrest and another entry at 6:01 a.m. for Person 1 property being returned (BR 16-17).

Sgt. Carter testified (BR 18) that during the vehicle stop, he saw either PO Jeanbaptiste’s or PO Giddins’ phone, which had a red indicator showing that the person had a warrant. Sgt. Carter did not see the warrant itself but “just remembered being satisfied with there being a warrant,” which was based upon his partners telling him about the warrant and seeing the warrant indicator. Person 1 said that he never got the ticket that had allegedly generated the warrant. The officers did not conduct any further investigation on scene because they do not have the tools or the time to conduct an investigation on scene and it would be safer to do so at the stationhouse. It was Sgt. Carter’s decision to bring in Person 1 on the warrant, as he had been informed about the warrant by a credible source.

Sgt. Carter explained that when someone is arrested on an open warrant and brought to the stationhouse, an officer typically prints out the warrant and brings it to the main desk. No further investigative steps need to be taken. Sgt. Carter testified that Person 1 warrant was printed out at the stationhouse, though Sgt. Carter did not recall who printed it or when it was printed. Shortly after Sgt. Carter and his partners dropped off Person 1 at the stationhouse, they left to respond to various priority jobs in the 911 system. Sgt. Carter recalled that Person 1 had stated that his brother had been shot and killed by officers and that his brother had used his ID. This statement lingered in Sgt. Carter’s mind, which led him to return to the stationhouse hours later to further investigate the circumstances of the warrant. Sgt. Carter described this as going “above and beyond” what was required of him. There was nothing else that led Sgt. Carter to decide to return to the stationhouse. Sgt. Carter did not recall whether Sgt. Donato called him or said anything to him about Person 1 or this incident.

After returning to the stationhouse and making additional searches in various NYPD databases, Sgt. Carter saw that there were multiple different NYSIDs attached to Person 1 record. There were differing physical characteristics on various arrest reports that were attached to the same NYSID, and some of the arrest photographs did not match Person 1. The officers determined that Person 1 did not have a warrant because they went through multiple databases to see various complaint

reports, arrests, and documents of that nature, though Sgt. Carter did not specify how those documents ultimately confirmed that Person 1 did not have an open warrant. According to his memo book, Person 1 name was not on the warrant, but Sgt. Carter did not have an independent recollection of learning that information and he did not recall whether he saw the warrant itself at any point. Sgt. Carter was not sure when these investigative steps were taken, how long it took to conduct the searches, or how long it took to release Person 1 after the issue was discovered. It was ultimately Sgt. Carter's determination that Person 1 did not have an active warrant, as Sgt. Carter was the one responsible for him. After being presented with the command log showing that Person 1 was at the stationhouse for approximately four and a half hours, Sgt. Carter explained that the process to release Person 1 took that long because they left the stationhouse to respond to jobs and the investigation took some time.

PO Jeanbaptiste's testimony was somewhat consistent with Sgt. Carter's. He confirmed that, during the vehicle stop, the NYPD database on his phone definitely showed that Person 1 appeared to have an active warrant. Everything that PO Jeanbaptiste saw on his phone on scene had Person 1 name, and not the name Person 3. He also confirmed that the protocol, upon bringing a prisoner back to the stationhouse for an open warrant, is to print out the person's warrant and ensure that everything is correct. PO Jeanbaptiste's recollection differed, however, with regard to how long Person 1 was held at the stationhouse. He recounted that an officer whom he could not recall printed Person 1 warrant a couple of moments after he was put into the holding cell. PO Jeanbaptiste saw the warrant and realized there was some type of inconsistency between Person 1 identity and the information on the warrant. PO Jeanbaptiste did not recall exactly what the inconsistency was, but the officers noticed it soon after Person 1 was brought to the stationhouse. PO Jeanbaptiste thought that Person 1 was in the stationhouse for approximately an hour or less. After viewing BWC footage showing that Person 1 was at the stationhouse for approximately four and a half hours, PO Jeanbaptiste explained that it took the officers some time to realize that there was a mistake in the warrant, but he did not know why it took so long.

A Warrant/I-Card search report showed that NYSID #07225141M is listed in NYPD records for both Person 1 and Person 3 (BR 19). The report also showed that Person 1 did not have any open warrants at the time of the incident, and that Person 3 had one active warrant listed – which was the warrant for which Person 1 was arrested. The arrest warrant, for a 2012 violation of operating a motor vehicle without a license, listed Person 3 name and date of birth (BR 20). A BADS search (BR 21) showed that Person 3 had six arrests with three different dates of birth listed, one of which was Person 1 date of birth.

The Court in *People v. Hicks*, 68 N.Y.2d 234 (1986) (BR 22), citing *United States v. Sharpe*, 470 U.S. 675 (1985) (BR 23), applied a test of reasonableness when assessing whether a detention was justified. They held that a detention for a short period of time reasonably related in scope to the circumstances justifying the initial stop may be justifiable under certain limited circumstances.

It is evident from the BWC footage and officers' testimonies that they saw an official notification that Person 1 had an open warrant during the vehicle stop. The investigation found that Sgt. Carter and PO Jeanbaptiste were not required to conduct any further investigation on scene, as they reasonably believed at the time that Person 1 was the person sought in the warrant. As such, Sgt. Carter did not unlawfully arrest Person 1. It is therefore recommended that **Allegation B** be closed as **unfounded**.

As per the officers' testimonies, it is protocol to print out a person's warrant while processing them at the stationhouse. However, it is evident based on Sgt. Carter's testimony, Person 1 testimony, and the amount of time Person 1 was held at the stationhouse, that the officers did not

immediately notice that the arrest warrant bore Person 3 name and date of birth, and that they left the stationhouse after dropping off Person 1 for processing. Reasonable due diligence from Sgt. Carter, the supervisor responsible for Person 1 would have entailed looking at the name on the warrant to ensure that they had the right person, especially considering Person 1 repeated protestations that there must be a mistake regarding the warrant. As such, the investigation found that Sgt. Carter did not act diligently when he failed to ensure that Person 1 was the actual person to whom the warrant applied, and that it was therefore unreasonable to detain Person 1 for approximately four and a half hours. It is therefore recommended that **Allegation D** be closed as **substantiated**.

Allegation (C) Abuse of Authority: Sergeant Jonathan Carter seized Person 1 property.

Person 1 testified that either PO Giddins or PO Jeanbaptiste drove his vehicle to the stationhouse. Once the officers later realized their error about the warrant, they said they would start the process of giving his belongings back and releasing him. Person 1 was released from the stationhouse with his vehicle, which he drove him home.

Sgt. Carter's BWC footage (BR 03, at 09:56) shows that Sgt. Carter drives Person 1 vehicle to the stationhouse. Prior to that point, Person 1 vehicle was parked in a lane of traffic, where the officers had stopped his vehicle. There is no explicit discussion about Sgt. Carter taking the vehicle.

Sgt. Carter testified that he brought Person 1 vehicle back to the stationhouse for safekeeping. The vehicle was not in a legal parking spot and Sgt. Carter was not going to drive around looking for a parking spot for him. PO Jeanbaptiste similarly testified that Sgt. Carter took the vehicle back to the stationhouse for safekeeping because they could not leave the vehicle on the street.

No person shall stop, stand, or park a vehicle other than in accordance with authorized signs 34 RCNY § 4-08 (a)(1) (BR 24). Upon effecting an arrest, officers should safeguard any vehicle or other conveyance not required as evidence. Patrol Guide Procedure 208-03 (BR 25).

As Person 1 vehicle was not parked in a legal parking spot and there was no one else present who could have taken the vehicle, Sgt. Carter was justified in removing the vehicle to the stationhouse for safekeeping. It is therefore recommended that **Allegation C** be closed as **within NYPD guidelines**.

Allegation (E) Other Possible Misconduct Noted: Police Officer Paris Giddins failed to prepare a memo book entry as required.

PO Giddins failed to prepare a memo book entry as required by Patrol Guide Procedure 212-08. It is therefore recommended that **Allegation E** result in **Other Possible Misconduct Noted**.

Allegation (F) Other Possible Misconduct Noted: Sergeant Jonathan Carter failed to produce a vehicle report as required.

Sgt. Carter, the ranking supervisor on scene, failed to ensure that a vehicle report was prepared, as required by Patrol Guide Procedure 209-09. It is therefore recommended that **Allegation F** result in **Other Possible Misconduct Noted**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which Person 1 has been a party (BR 26).
- Sgt. Carter has been a member of the NYPD for 12 years and has been a subject in five CCRB complaints and six allegations, none of which were substantiated. Three complaints against Sgt. Carter (202301324, 202305484, and 202307930) remain under investigation. Sgt. Carter's CCRB history does not reflect any apparent pattern pertinent to this investigation.
- PO Jeanbaptiste has been a member of the NYPD for two years and has been a subject in nine CCRB complaints 14 ten allegations, none of which were substantiated. Three complaints against PO Jeanbaptiste (202301324, 202309062, and 202310525) remain under investigation. PO Jeanbaptiste's CCRB history does not reflect any apparent pattern pertinent to this investigation.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- Person 1 filed a Notice of Claim with the City of New York claiming physical and emotional well-being injuries, loss of liberty and emotional distress, and violations of his constitutional, common law, and statutory rights. He is seeking damages to be determined by a jury (BR 27). A 50-H hearing is scheduled for November 15, 2023.
- According to the New York State Criminal Inquiry System (NYSCIS), Person 1 does not have any history of convictions in New York City in the past ten years (BR 28).

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 5

Investigator:			November 14, 2023
	Signature	Print Title & Name	Date

Squad Leader:			November 14, 2023
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date